

Do You Qualify for Italian Citizenship?

The Free Qualification Guide by ItalianToBe

Eligibility questions, the main pathways, common disqualifiers, and what to research next — in plain English.

Millions of Americans carry Italian ancestry. Many of them have a legitimate, legal right to Italian citizenship — passed down through bloodline, waiting to be claimed. Some have been sitting on this right for decades without realizing it.

Italian citizenship law changed significantly in 2024. Descent claims through *jure sanguinis* are now limited to a parent or grandparent as the qualifying Italian ancestor. If your connection runs further back, alternative pathways may still exist.

Work through each section honestly. If you reach the end still feeling like you might have a claim, the next step is a conversation — not a commitment.

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PART ONE

Am I Eligible for Jure Sanguinis?

The Qualification Checklist

Answer each question as accurately as you can. If you are unsure, note it and move on.

1 Do you have a parent or grandparent who was born in Italy?

Under the 2024 reform, jure sanguinis claims are limited to a parent or grandparent as the qualifying Italian ancestor. Great-grandparents and earlier are no longer valid for new applications. If your connection runs further back, speak with a consultant.

2 Did that ancestor remain an Italian citizen at the time the next person in your lineage was born?

If your Italian ancestor naturalized as a US citizen before the birth of the next person in the chain, the citizenship right was extinguished before it could be passed down. Exact dates must be verified through official records.

3 Is every person in the lineage between your Italian ancestor and you born in wedlock?

Children born outside of marriage were historically treated differently under Italian law. Court decisions have addressed some of these cases, but it is worth identifying early if there is any ambiguity in your family tree.

4 Are you able to locate, or willing to research, the vital records for each generation?

Birth, marriage, and death certificates — both Italian and American — are required for every generation in the chain. Without them, no case can move forward.

5 If your line of descent passes through a female ancestor born before 1948, are you prepared for a more involved process?

Cases passing through a woman before 1948 require a civil court case in Italy rather than a standard consulate application. See Part Two for details on the 1948 rule.

If you answered "I don't know" to questions 1 or 2, that is actually where most people start. The information exists — it just needs to be found.

PART TWO

The Pathways to Italian Citizenship

Italian citizenship law offers several distinct routes. Understanding which one applies to you determines how your case is handled, how long it takes, and what it costs.

1**Jure Sanguinis — Citizenship by Descent**

For those with a parent or grandparent who was an Italian citizen.

- Under the 2024 reform, the qualifying Italian ancestor must be a parent or grandparent who held Italian citizenship at the time of the relevant birth in your lineage.
- The citizenship right must pass uninterrupted through each generation. Any naturalization before the next birth in the chain breaks the claim.
- You apply through the Italian consulate covering your US state, or in person in Italy. In-person applications typically resolve within 3 to 12 months; consulate timelines vary widely and can run several years.

The 1948 Rule — Descent Through a Female Ancestor

- Prior to 1948, Italian women could not legally pass citizenship to their children.
- If your line of descent runs through a female ancestor before that date, a standard consulate application is not available to you.
- Instead, a civil court case is filed in Italy to formally recognize your right. These cases are well established in Italian courts and typically resolve within 12 to 24 months. An Italian attorney is required.

2

Citizenship Based on Residency

For those who choose to live in Italy and naturalize through residence.

- If you do not have an ancestral claim, or prefer a different route, you can apply for citizenship after legally residing in Italy for a qualifying period.
- EU citizens qualify after 4 years of legal residence. Non-EU citizens, including Americans, must complete 10 years.
- Requirements include proof of legal residency, Italian language proficiency, and a clean criminal record.
- This is a longer process, but it is fully viable for those committed to building a life in Italy.

3

Citizenship Through Marriage

For those married to an Italian citizen.

- If you are married to an Italian citizen, you can apply for citizenship after 2 years of legal residency in Italy, or after 3 years if residing abroad.
- If you have a child born of the marriage, the waiting periods are cut in half: 1 year of residency in Italy, or 1 year and a half if residing abroad.
- These timelines reflect the 2018 security decree, which doubled the original periods. The reduction for families with children remains in effect.
- Italian language proficiency at the B1 level is required.
- This route is entirely independent of ancestry and is based on the marital relationship alone.

PART THREE

Common Disqualifiers — What Kills a Case

Most failed applications do not fail because of bad luck. They fail because of specific, identifiable problems that were either unknown or unaddressed going in.

! Your Italian ancestor naturalized before the birth of their child in your lineage

This is the most frequent disqualifier. If your grandfather naturalized as a US citizen before your parent was born, the chain is broken. The exact naturalization date must be verified through official records, not assumed based on family stories.

! The qualifying ancestor is beyond a grandparent

Under the 2024 reform, jure sanguinis claims are limited to those whose qualifying Italian ancestor is a parent or grandparent. Great-grandparents and further are no longer valid for new applications. Alternative routes may exist depending on your situation.

! Your ancestor formally renounced Italian citizenship

Renunciation ends the right to pass citizenship. This is less common than a naturalization break, but it does occur — particularly in cases involving military service or certain government employment.

! Missing or unrecoverable vital records

Every generation in the chain requires documentary proof. If a certificate has been lost, destroyed, or was never recorded, the application cannot proceed without alternative evidence — and that evidence is not always available.

! Applying through the wrong consulate or pathway

Filing through the wrong consulate, or pursuing a standard jure sanguinis application when your case requires the 1948 court route, can result in years of wasted time and additional expense.

PART FOUR

What Documents Will You Need?

The documents required vary by pathway and by how many generations back your Italian ancestor is. Below is a general picture of what a *jure sanguinis* case involves. Your consultant will identify exactly what applies to your chain.

Documents needed for *jure sanguinis* cases:

You will need records for every person in the line between your Italian ancestor and you. For each generation that applies, this typically means:

Birth certificates	For your Italian ancestor, every person in the chain, and yourself.
Death certificates	For each person in the chain who has passed, including your Italian ancestor.
Marriage certificates	For each marriage within the lineage.
Naturalization record (or proof that naturalization never occurred)	This is the most critical document. The exact date of naturalization — or confirmation that your ancestor never naturalized — determines whether the chain holds. Request from the US National Archives or USCIS.

Additional requirements depending on your situation:

Your situation	What changes
1948 rule case (descent through a woman before 1948)	Same records, plus an Italian attorney to file the court case.
Citizenship based on residency	Proof of legal Italian residency, codice fiscale, Italian language certification, and a clean criminal record.
Citizenship through marriage	Marriage certificate, proof of Italian spouse's citizenship, residency documentation, and B1 language certification.

A note on apostilles and translations: documents from US vital records offices will typically need to be apostilled — certified for international use — and officially translated into Italian. Your consultant will confirm which documents require this.

Ready to find out where your case actually stands?

Every case is different. This guide gives you the framework — but your specific dates, records, and lineage determine what is actually possible. We start every new client relationship with a free eligibility conversation, no commitment required.

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This guide is provided for informational purposes only and does not constitute legal advice. Citizenship law is complex and specific to each case. Consult a qualified professional before taking action.

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